Territory of Wyoming, as may no longer be required for military purposes: *Provided*, That the Secretary of the Interior shall, whenever in his opinion the public interests may require it, cause any of the foregoing reservations, or part thereof, to be subdivided into tracts less than forty acres each, or into town lots: *And provided also*, That each subdivision shall be appraised and offered separately at public outcry, to the highest bidder, as hereinbefore provided, after which any unsold land or lot shall be subject to sale at private entry for the appraised value, at the proper land office: *And provided further*, That should there be improvements of buildings, or of building materials, or other valuable property, the Secretary of the Interior shall have them appraised; and no patent shall issue for the real estate until the improvements are paid for, at the appraised value thereof, under such regulations as may be prescribed by the said Secretary.

Reservations may be subdivided into forty-acre tracts or town lots.
Public auction.
Private entry.
Improvements.
Patent not to issue until, &c.

Sec. 2. *And be it further enacted*, That the right is hereby granted to Dalles City to have and use the waters of Mill creek flowing through the military reservation of Fort Dalles, Oregon, and the right of way to convey the same through said reservation for the purposes of supplying Dalles City with water and for manufacturing purposes.

Dalles City may use the water of Mill creek;

Sec. 3. *And be it further enacted*, That permission is granted to the corporated authorities of Dalles City to extend Liberty Street southerly, on the line of the same, through said reservation, and [that] the land lying east thereof be, and the same is, granted to said Dalles City, in fee, upon the payment to the United States therefor [of] the sum of five dollars per acre.

may extend Liberty Street southerly.
Grant of land

Sec. 4. *And be it further enacted*, That the land hereby granted to said city shall be surveyed under the direction of the surveyor-general for the State of Oregon upon application to him made by the mayor of said city; and the expenses of such survey shall be paid by said Dalles City.

Land to be surveyed;
expenses of survey.

Approved, February 24, 1871.

CHAP. LXXI. — *An Act prescribing the Form of the enacting and resolving Clauses of Acts and Resolutions of Congress, and Rules for the Construction thereof.*

Feb. 25, 1871.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the enacting clause of all acts of Congress hereafter enacted shall be in the following form: "Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled"; and the resolving clause of all joint resolutions shall be in the following form: "Resolved by the Senate and House of Representatives of the United States of America in Congress assembled"; and no further enacting or resolving words shall be used in any subsequent section or resolution after the first; and each section shall be numbered and contain as nearly as may be a single proposition of enactment.

Form hereafter of enacting clause of acts;
of resolutions.
No further enacting, &c. words.
Sections how to be numbered and what to contain.

Sec. 2. *And be it further enacted*, That in all acts hereafter passed words importing the singular number may extend and be applied to several persons or things; words importing the plural number may include the singular; words importing the masculine gender may be applied to females; the words "insane person" and "lunatic" shall include every idiot, non-compos, lunatic, and insane person; and the word "person" may extend and be applied to bodies politic and corporate, and the reference to any officer shall include any person authorized by law to perform the duties of such office, unless the context shows that such words were intended to be used in a more limited sense; and the word "oath" shall include "affirmation" in cases where by law an affirmation may be substituted for an oath, and in like cases the word "sworn" shall include the word "affirmed."

Rules of construction;
singular and plural words;
masculine and feminine;
"insane person" and "lunatic."
"Person" to include corporation.
"Oath" and "sworn" to include "affirmation" and "affirmed."

Sec. 3. *And be it further enacted*, That, whenever an act shall be re-

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Repeal not to revive former act;

not to release any penalty, &c. unless, &c.

pealed, which repealed a former act, such former act shall not thereby be revived, unless it shall be expressly so provided.

Sec. 4. *And be it further enacted*, That the repeal of any statute shall not have the effect to release or extinguish any penalty, forfeiture, or liability incurred under such statute, unless the repealing act shall so expressly provide, and such statute shall be treated as still remaining in force for the purpose of sustaining any proper action or prosecution for the enforcement of such penalty, forfeiture, or liability.

Approved, February 25, 1871.

Feb 25, 1871.

1870, ch. 150. *Ante*, p. 162.

CHAP. LXXII. — *An Act supplementary to an Act to establish the Department of Justice.*

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That there shall be in the Department of Justice an additional assistant of the Attorney-General, who shall be appointed by the President, by and with the advice and consent of the Senate, and shall hold his office until a successor shall be duly qualified, and who shall be paid the salary of other assistants of the Attorney-General.

Additional assistant attorney, general authorized.

Appointment, pay, &c. Vol. xvii. p. 6.

Approved, February 25, 1871.

Feb. 27, 1871.

CHAP. LXXIII. — *An Act to enable J. H. Schnell, of California, to enter and pay for a Section of public Land in California for his Tea Colony.*

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That J. H. Schnell, of California, be authorized to enter, at the proper United States land office, a quantity of land not exceeding six hundred and forty acres, at the minimum price, according to the lines of his improvements, tea gardens, and other culture, in the county of El Dorado, in the State of California, and to which there may not be any adverse claim except that of the United States.

J. H. Schnell may enter, &c. a section of public land for a tea colony.

Approved, February 27, 1871.

Feb. 27, 1871.

CHAP. LXXIV. — *An Act to authorize [the] Worthington National Bank of Cooperstown, New York, to change its Name and Location.*

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the Worthington National Bank, now located in Cooperstown, State of New York, is hereby authorized to change its location to the village of Oneonta, in the county of Otsego, and State of New York. Whenever the stockholders representing three fourths of the capital of said bank, at a meeting called for that purpose, determine to make such change, the president and cashier shall execute a certificate, under the corporate seal of the bank, specifying such determination, and shall cause the same to be recorded in the office of the comptroller of the currency, and thereupon such change of location shall be effected; and the operations of discount and deposit of said bank shall be carried on under the name of the First National Bank of Oneonta, in the village of Oneonta, in the county of Otsego, and State of New York.

The Worthington National Bank may change its name and location.

Proceedings to change.

New name.

Liabilities and rights of the bank not affected.

Sec. 2. *And be it further enacted*, That nothing in this act contained shall be so construed as in any manner to release the said bank from any liability, or affect any action or proceeding in law in which the said bank may be a party or interested. And when such change shall have been determined upon as aforesaid, notice thereof and of such change shall be published in at least two weekly newspapers in the aforesaid county in which Cooperstown is situate, in the State of New York, for not less than four successive weeks.

Notice of change to be published.

Approved, February 27, 1871.